

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUNP054831: OLIVIA GARCIA vs CITY OF VENTURA, A GOVERNMENT
ENTITY**

07/21/2026 in Department 21

Motion for Leave to File Second Amended Complaint

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion for Leave to Amend Complaint and File Second Amended Complaint (*Unopposed*)

Tentative Ruling:

Plaintiff’s motion for leave to file a Second Amended Complaint (“SAC”) is DENIED without prejudice. No proof of service is presently on file. Additionally, the motion does not strictly comply with California Rules of Court, rule 3.1324. It does not identify the proposed additions or deletions by page, paragraph, and line number, and the supporting declaration does not adequately state when the supporting facts were discovered or why leave was not sought earlier.

Moving party to give notice.